



SANJAY DUTT WAS BOOKED UNDER TADA IN THE 1993 MUMBAI BLASTS

| 1985 | TADA IS PASSED IN PARLIAMENT

Strong Arm of the Law

A tough Act on terror tests the limits of liberty and security

The Terrorist and Disruptive Activities (Prevention) (TADA) Act was the first legislative effort to define and counter terrorist activities. It was introduced in 1985 to counter terrorist violence in Punjab, which later spread across the country. It was expected then that TADA could curb the menace in a short term and the life of the act was stipulated at two years. The police were given enhanced powers for detention of suspects and the Act shifted the burden of proof on the accused. But within a few years, the chorus of dissent began to swell amid allegations of misuse of TADA, which many believed ate into foundations of democracy in the country. Till 1994, 76,166 persons had been arrested under the Act. Of these, 18,708 had no charges being framed against them. Barely 4 per cent of persons tried under the Act were found guilty. The high profile catch was Sanjay Dutt who was booked under TADA for his alleged role in the 1993 Mumbai blasts case. The validity of TADA was extended in 1989, 1991 and 1993. When the act was due to expire in May 23, 1995, then Home Minister S.B. Chavan held meetings with Opposition leaders and chief ministers in a bid to mobilise support. But Congress had to contend with fierce opposition from within its ranks. West Bengal MP Mamata Banerjee held a day-long dharna in Parliament threatening to resign on the issue. Two cabinet ministers, Ghulam Nabi Azad and C.K. Jaffer Sharief, declared they would quit if the law was not allowed to lapse. Courtesy the adverse publicity, the Congress government allowed it to lapse in 1995. But the law found an afterlife in later years, with varying intensity, in form of The Prevention of Terrorism Act (POTA), 2002; and the Unlawful Activities (Prevention) Act (UAPA) passed this year. Though UAPA has made confessions under police custody non-admissible, the legislation has doubled the number of days the police can detain terror suspects before filing charges varying from 90 days to 180 days. With the experience of abuse of TADA and POTA, there is an increasing demand for achieving both liberty and security to an appreciable degree.

ALSO

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by Shafi Rahman

THE MAIN EVENT

Shah Bano Case

Defenders of women's rights were quick to applaud the Supreme Court's decision. But their joy was short-lived. In a dramatic turnaround, Shah Bano called a press conference last fortnight to announce that she would like the Supreme Court to withdraw its judgment. "I did it because the priests told me that the judgment was an interference in the Shariat. When I asked for maintenance I did not know that it was *haram* (forbidden) in Islam. I am an illiterate old woman, so how was I to know all this? I thought I was doing the right thing but they have explained to me that it was wrong so now I understood."

India Today, December 25, 1985

